

The Prevention Of Cruelty To Animals (Transport Of Animals On Foot) Rules, 2001

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The Prevention Of Cruelty To Animals (Transport Of Animals On Foot) Rules, 2001

UNION OF INDIA

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The Prevention Of Cruelty To Animals (Transport Of Animals On Foot) Rules, 2001

Rule THE-PREVENTION-OF-CRUELTY-TO-ANIMALS-TRANSPORT-OF-ANIMALS-ON-FOOT-RULES-2001 of 2001

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The Prevention Of Cruelty To Animals (Transport Of Animals On Foot) Rules, 2001

Published vide S.O. 268(E), dated 26.3.2001, published in the Gazette of India, Extraordinary, Part II, Section 3(ii), dated 26.3.2001.

19.

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In exercise of the powers conferred by sub-sections (1) and (2) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Prevention of Cruelty to Animals (Transport of Animals on Foot) Rules, 2001.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules unless the context otherwise requires,-

(a)

"animal" means livestock and includes the following animals namely:-

(i)

cattle including cow, bulls and bullocks, buffalo bulls and bullocks, cows, buffaloes, Mithuns, yaks and calves;

(ii)

equines including horses, ponies, mules and donkeys;

(iii)

horse including entire (stallions), goldings, brood mares, colts and fillies;

(iv)

goat including adult goat, male or female of two years age and above;

(v)

rudd including male goat;

(vi)

kid young goat below one year of age;

(vii)

nanny female goat;

(viii)

sheep including adult sheep, male or female of two years age and above;

(ix)

ewe female sheep;

(x)

lamb young sheep below one year of age;

(xi)

ram male sheep;

(xii)

wether includes male lamb that has been castrated before reaching sexual maturity;

(xiii)

pig includes adult pig, male or female of one year of age or above;

(xiv)

piglet includes young pig below one year of age.

(b)

"veterinary doctor" means a person registered with the Veterinary Council of India established under the Indian Veterinary Council Act, 1984 (52 of 1984).

(c)

"Schedule" means a schedule appended to these rules.

3.

Application of the rules .-These rules shall apply to transport of animals on foot when the distance from the boundary of village or town or city of the origin of such transport to the last destination is 5 km or more than 5 km.

4.

Condition of health of animals transported on foot .-(1) Every animal to be transported on foot shall be healthy and in good condition for such transport.

(2)

A certificate of a veterinary doctor in respect of each animal to be transported to the effect that such animal is in a fit condition for such transportation and is not suffering from any infectious, contagious or parasitic diseases and that it has

been vaccinated against any infectious, contagious or parasitic diseases shall accompany such animal.

(3)

The certificate under sub rule (1) shall be in the form as specified in the First Schedule.

5.

Certain animals not to transport on foot .-New born animals of which the navel has not completely healed, diseased, blind, emaciated, lame, fatigued, or having given birth during the preceding seventy two hours or likely to give birth during transport shall not be transported on foot.

6.

Transport in on-farm social group .-Animal shall be transported in their on farm social groups (established at least one week prior to journey).

7.

First aid equipment to accompany animals transported on foot .-The owner of the animals shall provide veterinary first aid equipment to be accompanied with such animals while transported on foot.

8.

Certificate to be carried during transportation .-In case the person transporting the animals on foot is not the owner of the animal then such person shall carry a certificate as specified in the Second Schedule during such transportation.

9.

Watering arrangement during transportation of animals .-The owner of the animals shall make watering arrangement in route during transport of such animals on foot.

10.

Feed and fodder arrangements during transportation of animals .-Sufficient feed and fodder with adequate reserve of such feed and fodder for the animals shall be made available by their owner during their transport on foot.

11.

Prohibition of the use of whip, etc., during transportation of animals on foot .-(1) No person shall use a whip or a stick in order to for the animal to walk or to hasten the pace of their w nor such person shall apply chillies or any oft substance to any part of the body of the animal for this purpose during their transportation on foot.

(2)

If any animal needs to be tied during transport on foot, it shall be tied by a rope covered with suitable cushioning such as cloth around its leg and such animal shall not be tied by its nose, all legs or any other part of the body except by its neck.

(3)

If more than one animal is to be tied adjacent to one another by a single rope during their transport on foot, the space between any two of such animals shall be minimum two feet and animals so tied shall be of similar physical condition and strength and no more than two such animals shall be tied adjacent to each other by a single rope.

12.

Certain Prohibition on transport of animals on foot .-(1) No person shall transport on foot an animal before sunrise or after sunset.

(2)

No animal shall be transported on foot beyond the distance, time, rest interval and temperature specified for such animal in the Table below, namely:-

TABLE

Species (Animal)

Maximum distance covered/day/hour

Maximum no. of walking/day of hours (Travelling)

Period of rest (interval)

Temperature range Max. Min

Cattle (Cows)

30 km/day 4 km/hr

8 hours

At every 2 hours for drinking and at every 4 hrs for feeding

12 deg. C to 30 deg. C

Buffaloes

25km/day 3km/hr

8 hours

At every 2 hours for drinking and at every 4 hrs for feeding

12 deg. C to 30 deg. C

Cows and Buffaloes Calves

16 km/day 2.5 km/hr

6 hours

At every 1 1/2 hrs for drinking and at every 3 hrs. for feeding

15 deg. C to 25 deg. C

Horses, ponies, Mules, Donkeys

45 km/day 6km/hr

8 hours

At every 3 hours for drinking and at every 6 hrs. for feeding

12 deg. C to 30 deg. C

Young ones (Foal)

25 km/day 4 km/hr

6 hours

At every 2 hours for drinking and at every 4 hrs for feeding

15 deg. C to 25 deg. C

Goats and Sheep

30 km/day 4 km/hr

8 hours

At every 2 hours for drinking and at every 4 hrs for feeding

12 deg. C to 30 deg. C

Kids and Lambs

16 km/day 2.5 km/hr

6 hours

At every 1 1/2 hrs for drinking and at every 3 hrs. for feeding

15 deg. C to 25 deg. C

Pigs

15 km/day 2 km/hr

8 hours

At every 1 1/2 hrs for drinking and at every 3 hrs. for feeding

12 deg. C to 30 deg. C

Piglets

10 km/day 1.5 km/hr

6 hours

At every 1 1/2 hrs for drinking and at every 3 hrs. for feeding

15 deg. C to 25 deg. C

Note .-After being provided with water every animal shall be given a break of 20 minutes before the commencement of the transport of the animal on foot and in case of feeding the break shall be given for one hour before the commencement of the transport of the animal on foot.

(3)

No animal shall be made to walk under conditions of heavy rain, thunderstorms or extremely dry or sultry conditions during its transport on foot.

13.

Transportation of animals in certain cases not permitted without shoes .-Animals whose hooves are not provided with shoes (as in the case of pack or drought animals) shall not be transported on foot on hard cement, bitumen-coated or metalled roads, steep gradients or hilly and rocky terrain, irrespective of weather conditions (summer or winter)

14.

Power of Police to require the owner to take animal to nearest Magistrate .-(1) If any police officer above the rank of constable or any other person authorised in this behalf by the Central or state Government or by the Animal Welfare Board of India by the general or special order, has reason to believe that an offence has been or is being committed in respect of an animal in contravention of these rules, he may require the owner or other person in charges of such animal to take the animal to the nearest magistrate.

(2)

If the owner or the person in charge of the animals referred to in sub rule (1) refuses to comply with the demands of the police officer under that sub rule, it shall be lawful for such police officer or such other persons to take the animal to the nearest magistrate.

FIRST SCHEDULE

FORM FOR CERTIFICATE OF FITNESS FOR TRANSPORT OF ANIMALS

[See rule 4(3)]

This Certificate should be completed and signed by a qualified Veterinary Doctor

Date and time of examination

Species

Number of Trucks/Railway Wagons

Number of Cattle

Sex.....

Age.....

Identification

Breed (giving characteristics) - Area where it is found with status regarding general resistance and heat tolerance.

Individual Features of the animal -

Body colour

Height

Body weight (approx)

Animal length

Breadth (measured between pelvic bones)

Colour of the eyes

Shape of the horns

General conditions (like fleshy, bony projections)

Health Status

History of the animal, feed status whether or not sign of anorexia/diarrhea

1. Record Body Temperature

2. Examine eyes for buging or protrusion of eyeball, blindness, Corneal opacity & specify

3. Condition of skin, (including signs of dehydration, injuries, anorexia (check for presence of warts on the skin)

4. Ears

Examine ears - (check for animal body response to hearing, check for any infection, inflammation or secretion (a) excess of wax, blood or any fluid)

5. Examine sub maxillary spell for swelling (for any abnormality or pain)

6. Check for status of pregnancy of female animal If yes - which stage 1st, 2nd or 3rd stage

7. Examine udder & teats & specify--

a. Relative size of quarters

b. Check for signs of swelling/atrophy/fibrous

c. in duration on palpation of individual quarter and specify.

8. (a) If female - check

Check for sign of vaginal discharge on examination of the vulva and specify

(b)

In male - check

Testicles-Size, any sign/abnormalities for monogastric animals

Penis - injury, abrasions or the sheath, discharges to be recorded

9. Sign of abdominal pain (check for gait or posture of the animal, check for signs of abdominal distention, left flank to be

checked for rumen examination (full, empty) tympani/blood

10. Digestive System

Examine mouth and specify

1. Detail out dentition

2. Specify - evidences of

----tooth damage

----broken or worn incisors

11. Respiratory system

a. Record Respiration rate

b. Auscultation & specify for signs of dyspnoea, respiratory distress & specify

12. In cows possessing horns check and specify

a. shape of horns

b. number of horn rings

c. any difference in the direction

d. or appearance of two horns

13. Examine ribs for fracture and specify

14. Examine abdominal wall for presence of ventral or umbilical hernia and specify.

15.

Examine limbs and joints for bony enlargements or synovial distentions & specify check for signs of lameness - specify

16.

Examine interdigital space for any lesions check and specify

17.

Any indications of foot soreness, excessive wear of soles or laminitis

18.

Examine circulatory system

1. Specify pulse rate

2. Check for presence of oedema dependent portion or ascitis and specify

19. Transported from.....to.....via

I hereby certify that I have read the Prevention of Cruelty to Animals (Transport of animals on Foot) Rules, 2001.

1. That, at the request of (Consignor) I examined the above mentioned Cattle in the goods vehicle/railway wagons not more than 12 hours before their departure.

2. That each cattle appeared to be in a fit condition to travel by rail/road and is not showing any signs of infectious or contagious or parasitic disease and that it has been vaccinated against rinderpest and any other infections or contagious or parasitic disease(s)

3. That the cattle were adequately fed and watered for the purpose of the journey.

4. That the cattle have been vaccinated.

(a)

Type of vaccine (b) Date of vaccination :

Date.....

Signed.....

Address.....

.....

Qualification.....

SECOND SCHEDULE

AUTHORISATION CERTIFICATE

(See rule 8)

1. Name and age of the owner

2. Father's Name

3. Address of the Owner

4. No. of animals for transport specifying species, age and sex of each animal

5. Name of the person/persons transporting the animals

6. Specify the place of origin and the place of last destination of such animals for transport

7. Attach a copy of the veterinary certificate granted under Rule 8

8. Details of feed, fodder and watering arrangements provided during transport of such animals

I do hereby declare that I am the owner of the aforementioned animals. I have authorized Shri_____S/o_____r/o_____to transport the said animals. I have read and understood the Transport of Animals on Foot Rules, 2001 and undertake that the said Rules have been and would be complied with during transport.

I do hereby state that the above information is true and correct.

TO BE FILLED IN BY THE TRANSPORTER

I.....S/o.....r/o.....do hereby give my consent transport the aforementioned animals from the aforesaid place of origin to the place of destination.

I have read and understood the Transport of Animals on Foot Rules, 2001 and undertake that the said Rules would be complied with during transport.

I do hereby state that the above information is true and correct.

Sd/-

(Transporter)

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Translation